

The Orissa Service of Engineers (Validation of Appointment) Act, 2001

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The Orissa Service of Engineers (Validation of Appointment) Act, 2001

Act 1 of 2002

Published on 5 February 2002

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The Orissa Service of Engineers (Validation of Appointment) Act, 2001

Orissa Act

1 of 2002

[Dated 5th February, 2002]

Published vide Orissa Gazette Extraordinary No. 171 dated 6.2.2002.

No. 1809-Legislative. - The following Act of the Orissa Legislative Assembly having been assented to by the Governor on the 31st January, 2002 is hereby published for general information.

An Act to validate the ad hoc appointment of certain Assistant Engineers made to the Orissa Service of Engineers

Be it enacted by the Legislature of the State of Orissa in the Fifty-second Year of the Republic of India as follows :

1.

Short title.

- This Act may be called the Orissa Service of Engineers (Validation of Appointment) Act, 2001.

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"Government" means the Government of Orissa;

(b)

"Recruitment rules" means the Orissa Service of Engineers" Rules 1941; and

(c)

"Service" means the Orissa Service of Engineers.

3.

Validation.

(1)

Notwithstanding anything contained in the Recruitment Rules, thirty-nine Assistant Engineers as specified in the Schedule indicating their names, dates of birth and dates of appointment who were appointed to the Service on ad hoc basis by Government in the Works and Housing and Urban Development Departments of Government to meet the urgent requirement of the said Departments, and are continuing as such, shall be deemed to have been validly and regularly appointed to the service under said Departments with effect from the date of commencement of this Act and, accordingly, no such appointment shall be challenged in any Court of law merely on the ground that such appointment was made otherwise than in accordance with the Recruitment Rules.

(2)

The Assistant Engineers whose appointments are so validated under Sub-section (1) shall be en bloc junior to those who have been appointed to the Service under the respective Departments in accordance with the Recruitment Rules prior to the commencement of this Act.

(3)

The inter se seniority of the said Assistant Engineers in the Service under the respective Departments shall be in accordance with the order of precedence in which their names occur in column (2) of the Schedule.

(4)

The services rendered by the said Assistant Engineers prior to the commencement of this At shall count for the purpose of pension, leave and increment, and for no other purpose.

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